BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SWIFT TRANSPORTATION CO. OF ARIZONA LLC, a limited liability company, d/b/a SWIFT TRANSPORTATION; and DOES 1 through 20, inclusive,** Defendants.	Case No. _____ **VERIFIED COMPLAINT FOR DAMAGES, DECLARATORY AND INJUNCTIVE RELIEF** (1) Penal Code § 290.46(j); (2) ICRAA, Civ. Code §§ 1786.40, 1786.50; (3) UCL, B&P Code § 17200 *[Unlimited Civil]* *[Jury Trial Demanded]*

DO NOT FILE. THE SEPTEMBER 26, 2023 PRE-ADVERSE PACKET, ONCE DECRYPTED, IS A LERMA FILE: NSOPW NEVER COMPLETED, NO CALIFORNIA-REGISTRY SOURCE, CRIMINAL COMPONENTS CLEAR. FILING THE SECTION 290.46(j) COUNT ON THIS PAPER WOULD INVITE THE LERMA DISMISSAL. THIS DRAFT IS RETIRED. KEEP IT IN THE FILE AS THE REASON MATTER 38 IS DEAD. DO NOT EXECUTE ON SEPTEMBER 8, 2026.

Plaintiff BRENDAN NGEHSI NEWANFORBI ("Plaintiff") alleges as follows:

I.

INTRODUCTION

1. This is an action under Penal Code section 290.46, subdivision (j), for the unauthorized employment use of California Megan's Law registry information. In September 2023, Plaintiff applied to Swift Transportation Co. of Arizona LLC for commercial-driver work. On October 5, 2023, Swift sent a written post-adverse-action letter stating that it had decided not to employ Plaintiff, or to take other adverse action, based in whole or in part on consumer reports.

2. Swift identified Asurint, Tenstreet, DriverIQ, the Federal Motor Carrier Safety Administration, and Equifax Workforce Solutions / The Work Number as the agencies that furnished those reports. The underlying reports themselves are not in Plaintiff's files. The September 26, 2023 pre-adverse attachment remains encrypted. Plaintiff is informed and believes, and on that basis alleges, that one or more of those reports included information disclosed pursuant to Penal Code section 290.46 — Plaintiff's status as a person required to register under Penal Code section 290, as published on the California Sex Offender Registry — and that Swift used that information for purposes relating to employment.

3. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk. Subdivision (j)(2)(E) prohibits use of that information for purposes relating to employment, except as another law authorizes. A commercial-driver hiring decision is a purpose relating to employment.

4. Federal motor-carrier screening does not swallow this claim. The FMCSA Drug and Alcohol Clearinghouse and the Pre-Employment Screening Program concern drug-and-alcohol violations and crash or inspection history. They are not Penal Code section 290.46 disclosures. An employer that may lawfully obtain ordinary criminal-history or safety records is not thereby

authorized to use Megan's Law website information for employment. Penal Code section 290.46(j)(3) says so.

5. Plaintiff does not allege registry use merely because he is registered. The inference rests on concrete facts: (a) Swift recruited Plaintiff for driver work and ran a multi-vendor screen; (b) Swift admitted, in writing, that consumer reports caused the denial; (c) Plaintiff was then listed on the California Megan's Law website; (d) commercial consumer reporting agencies had already shown they could match this same Plaintiff to the California Sex Offender Registry on an employment report; (e) Swift's letter stated no independent, lawful, job-related ground; and (f) the reports, adjudication logs, and decision-maker communications are exclusively within Defendants' possession.

6. In July 2024, First Advantage prepared an employment background report on Plaintiff for United Parcel Service. That report, later lodged in federal court by UPS, identified a Department of Justice website / National Sex Offender Registry search as decisional, stated 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY,' and produced an overall INELIGIBLE result. That report is not the Swift report. It is alleged because it shows that commercial screeners could and did identify this Plaintiff through the California registry and treat that identification as dispositive of employment eligibility.

7. Plaintiff does not name Knight-Swift Transportation Holdings, Inc., or any other parent, merely because it owns affiliated entities. He has sued DOES 1 through 10 for the consumer reporting agency that actually returned registry-derived information and for any Swift affiliate that was the actual employing or decision-making entity.

8. This Complaint does not plead a Tameny wrongful-termination or failure-to-hire count, an IIED count, a Fair Credit Reporting Act count, or a FEHA or Fair Chance Act count. The load-bearing claim is Penal Code section 290.46(j). Companion consumer-report and

unfair-competition counts are pleaded only to the extent the same employment use, if proven, also violated those statutes. Plaintiff preserves all timely rights to seek leave to amend.

II.

PARTIES

9. Plaintiff BRENDAN NGEHSI NEWANFORBI is a natural person residing in Stockton, San Joaquin County, California. He is also identified in employment and court records as Brendan Ngwa Nforbi, Brendan Ngehsi Ngwa Nforbi, and Brendan Ngehsi Ngwanforbi. Those name variants refer to Plaintiff.

10. Plaintiff is required to register under California Penal Code section 290. At all times relevant to this Complaint, information identifying him appeared on California's Megan's Law website and California Sex Offender Registry, operated pursuant to Penal Code section 290.46.

11. Defendant SWIFT TRANSPORTATION CO. OF ARIZONA LLC ('Swift') is a limited liability company that does business as Swift Transportation. Its October 5, 2023 letter lists 2200 South 75th Avenue, Phoenix, Arizona 85043. On September 25, 2023, the FMCSA Clearinghouse identified the querying employer as SWIFT TRANSPORTATION CO OF ARIZONA LLC, USDOT number 54283. On information and belief, Swift is qualified to transact business in California and was the entity that recruited Plaintiff, ordered the reports, and made the employment decision challenged here.

12. On information and belief, Swift's designated agent for service of process in California is National Registered Agents, Inc. Plaintiff will serve Swift through the agent listed on the California Secretary of State record as of the date of service. Service is not to be made at a terminal or recruiter's phone number merely because that is how Plaintiff first heard from Swift.

13. The true names and capacities of DOES 1 through 20 are unknown to Plaintiff, who therefore sues them by fictitious names under Code of Civil Procedure section 474. DOES 1 through 10 include the consumer reporting agency, investigative consumer reporting agency, or other vendor that assembled, evaluated, furnished, or scored background information about Plaintiff for Swift — including, if discovery so shows, Asurint, Tenstreet, LLC, DriverIQ / Cisive, or Equifax Workforce Solutions — and the individuals who ordered, reviewed, or acted on that information. Plaintiff will amend when their identities and roles are ascertained.

14. Robin Kaufman and Matt Hutto communicated with Plaintiff as Swift driver recruiters. They are percipient witnesses, not presently named as defendants. Matt Hutto's message used a Class A Recruiting address while stating it was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC.

15. Plaintiff is informed and believes that each DOE Defendant participated in, authorized, directed, furnished information for, implemented, concealed, or ratified one or more acts alleged and is legally responsible for the resulting harm.

III.

JURISDICTION AND VENUE

16. This Court has subject-matter jurisdiction under article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10.

17. This action is properly designated unlimited civil under Code of Civil Procedure sections 85 and 88 because the aggregate relief sought exceeds $35,000, exclusive of interest and costs. No specific personal-injury or punitive-damages amount is pleaded.

18. This Court has personal jurisdiction over Swift because Swift recruited Plaintiff, a California resident, for work; caused consumer reports to be procured about a California resident; sent the pre-adverse and post-adverse communications to Plaintiff in California; and is, on information and belief, qualified to do business in California.

19. Venue is proper in the County of San Joaquin under Code of Civil Procedure sections 395 and 395.5 because Plaintiff resides here, he received the recruiting, screening, and adverse-action communications here, and the liability and injury arose here.

20. Plaintiff has not pleaded a federal claim. This Complaint is a California statutory action belonging in this Court.

IV.

TIMELINESS

21. Penal Code section 290.46 does not prescribe its own limitations period. This action upon a liability created by that statute is timely under Code of Civil Procedure section 338, subdivision (a), which requires that such an action, other than a penalty or forfeiture, be commenced within three years after accrual.

22. The cause of action accrued, if at all, when Swift used registry information for purposes relating to Plaintiff's employment — that is, on the date of the employment decision, not on the date of application, and not on the date Plaintiff first registered under section 290.

23. Swift's written post-adverse letter is dated October 5, 2023, at 5:09 a.m. Swift Recruiting emailed that letter the same day. Three years from October 5, 2023, is October 5, 2026. Swift Recruiting emailed a password-protected pre-adverse letter on September 26, 2023. Three years from that earlier date is September 26, 2026. This Complaint is prepared for

execution on September 8, 2026, inside both dates. [PLAINTIFF MUST NOT DELAY PAST SEPTEMBER 26, 2026 IF HE TREATS THE PRE-ADVERSE LETTER AS ACCRUAL.]

24. Plaintiff does not concede that Code of Civil Procedure section 335.1 or section 340, subdivision (a), supplies the limitations period for the section 290.46(j) count. He does not plead a Tameny or personal-injury count. A two-year clock from September 26 or October 5, 2023, would have closed in 2025. He has not pleaded the Fair Credit Reporting Act; the two-year FCRA discovery clock from those same 2023 letters would likewise have closed.

V.

COMMON FACTUAL ALLEGATIONS

A. The Swift Application

25. On Friday, September 22, 2023, at 3:02 p.m., Robin Kaufman, identifying herself as a Swift Transportation Driver Recruiter, emailed Plaintiff that she had received his information and asked him to complete the full application. The message was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC, 120 W. 3rd Street, Tulsa, Oklahoma 74103. Her stated direct line was 623-907-7414 and her address robin_kaufman@swifttrans.com.

26. That same evening, at 10:03 p.m., Matt Hutto, also identifying himself as a Swift Driver Recruiter, emailed that he was trying to reach Plaintiff at the number Plaintiff had provided, asked him to complete the full driver application, and gave 803-564-3092 as a return number. The message used Mhutto@classarecruitinginc.com and was likewise sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC.

27. On information and belief, the application was for commercial driver or other

safety-sensitive work requiring a commercial driver's license. The file does not contain the completed application, a written offer, a job title, or a rate of pay. [PLAINTIFF MUST CONFIRM THE ROLE, TERMINAL, AND WHETHER ANY OFFER WAS MADE BEFORE EXECUTION.]

B. The September 25, 2023 Screen

28. On Monday, September 25, 2023, at 11:54 a.m., Tenstreet notified Plaintiff that a DriverIQ employment background document ordered in connection with Swift was available in Driver Pulse.

29. Four minutes later, at 11:58 a.m., the FMCSA Office of Safety Programs emailed Plaintiff that SWIFT TRANSPORTATION CO OF ARIZONA LLC (USDOT# 54283) had requested access to his FMCSA Drug and Alcohol Clearinghouse record. The email warned that refusal would prohibit him from operating a commercial motor vehicle or performing other safety-sensitive functions for Swift.

30. At 1:20 p.m. the same day, Tenstreet notified Plaintiff that his FMCSA Clearinghouse result ordered by Swift Transportation Co. of Arizona LLC was available for review. The contents of that result are not in Plaintiff's files.

31. The Clearinghouse query is alleged as proof that Swift was then treating Plaintiff as a prospective commercial-driver hire and was running federally required safety screens. It is not alleged to be a Penal Code section 290.46 disclosure. Clearinghouse records concern drug and alcohol program violations, not Megan's Law.

C. The Pre-Adverse and Post-Adverse Letters

32. On Tuesday, September 26, 2023, at 3:09 a.m., Swift Recruiting (recruitadmin@swifttrans.com) emailed Plaintiff a message titled 'Swift Transportation - FCRA,' addressed to Brendan Ngehsi Ngwa Nforbi, stating that an important communication was attached as Pre_Adverse_Action_Letter_76326281-1916808-encrypted.pdf and that the password was the last four digits of his Social Security number.

33. The encrypted pre-adverse attachment in Plaintiff's present files has not been decrypted. Plaintiff does not allege its contents as a known fact. On information and belief, it was a pre-adverse-action notice under the Fair Credit Reporting Act stating that Swift was considering adverse action based on a consumer report and enclosing or linking that report. [PLAINTIFF MUST DECRYPT OR OTHERWISE OBTAIN THAT LETTER AND THE ENCLOSED REPORT BEFORE EXECUTION IF HE CAN.]

34. On Thursday, October 5, 2023, at 3:09 a.m., Swift Recruiting emailed Plaintiff a second 'Swift Transportation - FCRA' message, this time attaching Post_Adverse_Action_Letter_76326281-1916809_em.pdf.

35. The enclosed letter is on Swift Transportation Co. of Arizona LLC letterhead, dated October 5, 2023, 5:09 a.m., and addressed to Brendan Ngehsi Nforbi at 1455 Cat Tail Drive, Stockton, California 95204. It states that offers of employment at Swift are contingent upon successful completion of a background check, and that the letter 'serves as notification that we have decided not to employ you or have decided to take other adverse action based in whole or in part on a consumer report received from a consumer reporting agency.'

36. The letter states that Asurint (Cleveland, Ohio), Tenstreet (Tulsa, Oklahoma), DriverIQ (Tulsa, Oklahoma; disputes at Cisive), FMCSA-DOT, and The Work Number /

Equifax Workforce Solutions 'provided us with consumer reports which, in whole or in part, influenced our employment decision.' It states those agencies played no part in the decision other than providing the reports.

37. The letter says a copy of the consumer report and a Summary of Rights were attached. The copy in Plaintiff's files contains the cover letter, federal and multi-state rights summaries, and a California disclosure regarding background checks. It does not contain an Asurint, Tenstreet, or DriverIQ report showing component searches, hits, or reason codes. [PLAINTIFF MUST CONFIRM THAT HE NEVER RECEIVED THOSE UNDERLYING REPORTS BY EMAIL, PORTAL, OR MAIL.]

38. The California disclosure in that packet states that Swift may order a consumer report or investigative consumer report including 'federal criminal history, state criminal history, [and] public court records,' and names the same agencies. Criminal-history and court-record searches are not this claim. This claim is the use of information disclosed pursuant to Penal Code section 290.46.

D. Facts Supporting the Registry-Use Inference

39. Plaintiff is a person as to whom information is disclosed on the California Megan's Law website. That website, and the statute that created it, warn that the information may not be used for employment.

40. Swift is a national motor carrier. On information and belief, it maintains written background-screening policies for driver applicants, contracts with the agencies named in its October 5 letter, and adjudicates hits through a centralized process rather than by ad hoc decision of a single recruiter.

41. On information and belief, the ordinary Swift driver screen in 2023 included a search, or caused a vendor to search, sex-offender registry or Department of Justice public-notification sources, including sources that republish or are derived from California Penal Code section 290.46 disclosures.

42. The July 2024 First Advantage / UPS report is alleged for three limited purposes: it shows that Plaintiff's registry status was commercially retrievable for employment screening; it shows that at least one national CRA treated a California-registry source as an employment-eligibility bar for this Plaintiff; and it identifies the kind of record Swift's vendors would have been able to return. Plaintiff does not allege that First Advantage was Swift's vendor, and does not allege that UPS sent its report to Swift.

43. On information and belief, Swift or its vendor obtained, accessed, displayed, scored, or was informed of information disclosed pursuant to Penal Code section 290.46 concerning Plaintiff — including a California Sex Offender Registry listing, a Department of Justice website result, or a derivative national sex-offender compilation whose source of record was the California registry — in connection with the driver application and the October 5, 2023 decision.

44. On information and belief, Swift used that information for purposes relating to employment when it decided not to employ Plaintiff. The use was a substantial factor in the decision.

45. The basis for paragraphs 43 and 44 is the combination of: the driver application and multi-vendor screen; Swift's written admission that consumer reports caused the denial; Plaintiff's contemporaneous presence on the California registry; the demonstrated commercial retrievability of that listing; the absence of any other basis stated in the October 5 letter; and Swift's exclusive control of the reports that will confirm or refute the inference.

46. Alternative explanations — a failed Clearinghouse or drug-and-alcohol result, a driving-record or crash disqualification, a lawful criminal-history adjudication under a statute that actually authorizes the use, a CDL defect, or a withdrawal of the application — can be tested against a discrete set of records. Plaintiff will seek the application file, the Asurint, Tenstreet, and DriverIQ reports, the Clearinghouse and PSP results, adjudication notes, and communications of the decision-maker.

47. Lerma v. Amazon.com Services, LLC, C.D. Cal. No. 8:22-cv-01727, Dkt. 36, dismissed a Megan's Law count where the report itself showed ordinary court records and a national sex-offender search returning no record. Plaintiff pleads the opposite inference here and will stand or fall on what Swift's reports actually say.

48. The use was not to protect a person at risk within the meaning of section 290.46(j)(1). A general commercial-driver assignment is not, without more, the narrow authorization that subdivision (j)(1) describes. FMCSA authorization to query the Clearinghouse or PSP is not authorization to use Megan's Law website information. Swift has the burden of proving any other statutory authorization as a defense.

E. Knowledge, Concealment, and Harm

49. Swift knew or should have known that employment use of Megan's Law information is prohibited. The registry website displays that warning. Swift is a sophisticated interstate carrier with dedicated compliance and screening functions. On information and belief, its vendor contracts and adjudication guides address or should address California registry restrictions.

50. On information and belief, Swift did not identify the registry, or any other specific

ground, as the basis for the decision. The October 5 letter names agencies, not hits. That omission deprived Plaintiff of a meaningful opportunity to inspect the source, dispute a mismatch, and invoke the statutory remedies before the decision became final.

51. As a result of the decision, Plaintiff lost the Swift employment opportunity, including the wages and benefits of that position, according to proof and subject to mitigation. He also suffered emotional distress, humiliation, and anxiety from an unexplained denial he is informed and believes rested on a status the Legislature has forbidden employers to use. [PLAINTIFF MUST CONFIRM WHETHER ANY WAGES WERE EARNED AND ANY REPLACEMENT WORK BEFORE EXECUTION.]

52. Plaintiff has sought and continues to seek replacement employment and does not claim a guaranteed lifetime expectancy from an unaccepted driver application. Economic damages will be limited to losses proven with reasonable certainty and without double recovery against other dockets that arise from different employers and different decisions.

VI.

FIRST CAUSE OF ACTION

Unauthorized Employment Use of Registry Information
Penal Code section 290.46(j) — Against All Defendants

53. Plaintiff realleges paragraphs 1 through 52, except allegations expressly pleaded in the alternative are incorporated only to the extent consistent with this cause.

54. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk, except as otherwise authorized by law. Section 290.46(j)(2)(E) prohibits use of that information for purposes relating to employment unless

another law authorizes the use.

55. Section 290.46(j)(4)(A) makes the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000). The $25,000 figure is a cap on the civil penalty, not a substitute floor that displaces actual damages.

56. On information and belief, Swift, and such DOE Defendants as ordered, furnished, scored, or acted on the reports, used information disclosed pursuant to section 290.46 concerning Plaintiff.

57. The use related directly to employment: it concerned the Swift driver application and the October 5, 2023 decision not to employ Plaintiff. The use was not authorized by section 290.46(j)(1) or by any other provision of law applicable to that application. Defendants knew or should have known that employment use was prohibited. The use was a substantial factor in the decision and caused the loss and injury alleged.

58. Plaintiff seeks the remedies authorized by section 290.46(j)(4)(A) and preventive relief under subdivision (j)(4)(B) to restrain any pattern or practice of employment use of Megan's Law information in Swift's California recruiting and hiring.

VII.

SECOND CAUSE OF ACTION

California Investigative Consumer Reporting Agencies Act

Civil Code sections 1786.40 and 1786.50 — Against Swift and User DOES

(Pleaded on Information and Belief)

59. Plaintiff realleges paragraphs 1 through 52 and 56 through 57 to the extent consistent with this cause.

60. On information and belief, one or more of the agencies Swift named assembled or evaluated information concerning Plaintiff's character, general reputation, personal characteristics, or mode of living for employment purposes at Swift's request, and Swift was the user of that information before the October 5, 2023 decision.

61. Civil Code section 1786.40(a) required Swift, under circumstances in which employment was denied and an investigative consumer report had been obtained, to advise Plaintiff of that fact and supply the agency's name and address. Swift's October 5 letter names agencies. It does not, in the copy in Plaintiff's files, supply the actual investigative report or identify which component — still less a California-registry component — caused the denial.

62. On information and belief, Swift did not provide the underlying Asurint, Tenstreet, or DriverIQ reports or a meaningful source identification of any registry-derived item. [PLAINTIFF MUST CONFIRM NONRECEIPT OF THOSE REPORTS.]

63. The omission prevented Plaintiff from timely testing whether the source was the California registry or ordinary court records, and from invoking his statutory inspection and dispute rights under Civil Code section 1786.22.

64. Under Civil Code section 1786.50, Plaintiff seeks actual damages or $10,000, whichever is greater, costs, attorney's fees if later represented, and punitive damages upon proof

of gross negligence or willfulness.

65. This ICRAA count is not a Fair Credit Reporting Act count. Plaintiff has not pleaded 15 U.S.C. section 1681b(b)(3). He reserves amendment if production shows a timely FCRA claim and a notice or copy defect that the 2023 letters did not cure. He also reserves amendment under Civil Code section 1786.16 if production shows Swift procured an investigative report before the required standalone disclosure and written authorization.

VIII.

THIRD CAUSE OF ACTION

Unlawful and Unfair Business Practices

Business and Professions Code section 17200 — Against All Defendants

66. Plaintiff realleges paragraphs 1 through 65 to the extent consistent with this equitable cause.

67. Defendants engaged in unlawful practices by violating Penal Code section 290.46(j) and, if proven, Civil Code section 1786.40. They engaged in unfair practices by structuring a driver screen so an application could be denied on secret registry-derived information while naming agencies and withholding the hits.

68. Plaintiff suffered injury in fact and lost money or property through the lost Swift employment opportunity and other economic losses to be proven. He does not seek future unearned wages as UCL restitution. He seeks restitution only of money or property in which he had a vested interest and that Defendants acquired or caused him to lose through the challenged practices.

69. Legal damages are not an adequate remedy for Defendants' retention, use, and dissemination of registry-derived screening data or their ongoing employment-screening practices. Plaintiff seeks an injunction requiring Defendants to cease prohibited employment use of California registry information in California recruiting; preserve and disclose the source and audit trail of Plaintiff's screening; and correct or segregate unlawfully used data, together with restitution and declaratory relief ancillary to the injunction under Business and Professions Code section 17203.

IX.

PRESERVATION OF EVIDENCE

70. Defendants are on notice to preserve Plaintiff's complete Swift and Tenstreet application file; recruiter communications of Kaufman and Hutto; the Asurint, Tenstreet, DriverIQ, Clearinghouse, PSP, and Equifax / Work Number orders, reports, component searches, adjudication, access, and cancellation logs; the decrypted September 26, 2023 pre-adverse packet; and policies governing Megan's Law, FCRA, ICRAA, and driver adjudication in 2023.

71. Relevant electronically stored information includes applicant-tracking and Driver Pulse audit fields, event timestamps, reason codes, report-view logs, emails, chats, SMS, and data-retention records from September 1, 2023 through December 31, 2023, and any later date on which the employment decision was recorded or revisited.

72. The July 2024 First Advantage/UPS report is relevant to retrievability and matching methodology. It is not a substitute for Swift's own file.

X.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants as follows:

1. For actual, consequential, and economic damages according to proof, without double recovery;

2. For the remedies authorized by Penal Code section 290.46(j)(4)(A), including statutory, treble, exemplary, or civil-penalty relief as the trier of fact and law permit;

3. For ICRAA actual damages or $10,000, whichever is greater, and punitive damages upon the showing required by Civil Code section 1786.50, if that count is proven;

4. For punitive damages against only those Defendants for whom Civil Code section 3294 is proven, in an amount to be determined by the trier of fact, with no amount pleaded;

5. For restitution under Business and Professions Code section 17203 to the extent available;

6. For preventive and injunctive relief under Penal Code section 290.46(j)(4)(B), Business and Professions Code section 17203, and other applicable law;

7. For declaratory relief concerning Defendants' prohibited registry use to the extent an actual controversy remains;

8. For costs of suit and attorney's fees where authorized if Plaintiff obtains counsel;

9. For prejudgment and post-judgment interest as allowed by law; and

10. For such other relief as the Court deems just and proper.

XI.

DEMAND FOR JURY TRIAL

73. Plaintiff demands trial by jury on all causes of action and issues so triable.

Dated: September 8, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

VERIFICATION

STATE OF CALIFORNIA, COUNTY OF SAN JOAQUIN

I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Plaintiff in this action. I have read the foregoing VERIFIED COMPLAINT and know its contents. The matters stated are true of my own knowledge, except those stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on September 8, 2026, at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI